

CV-26-001863 H, A vs COUNTY OF STANISLAUS - Defendant County of Stanislaus's Demurrer to Plaintiff's Complaint - SUSTAINED, in part, without leave to amend; OVERRULED, in part.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: With regard to the First Cause of Action (Violation of Mandatory Duty/Gov. Code § 815.6 – Wrongful Death), the Court finds that Plaintiffs' allegations again fail to demonstrate the applicability of any purported mandatory duty or breach thereof under the referenced Code sections, regulations, or internal department policies. As it appears that Plaintiffs are unable to demonstrate the same in this context, leave to amend is DENIED as to this cause of action. With regard to the Second and Third Causes of Action for Vicarious Liability (Gov. Code § 815.2)-Wrongful Death and Negligent Hiring, Retention and Supervision-Wrongful Death), the Court finds, preliminarily, that these claims fall within the scope of the Court's previous order granting leave, as they respond to the defects identified in the previous version of Plaintiffs' Complaint. Further, the Court finds that Plaintiffs' Government Claim substantially complied with the statutory requirements for asserting these theories of liability, as the claim identified the relevant statutory bases in conjunction with the basic facts at issue herein. The Court further finds that the allegations are sufficient at the pleading stage to state the subject claims, specifically to the extent that the alleged failures on the part of County personnel breached an obligation to Deputy Hutsell to address alleged signs of psychological deterioration, which purportedly led to his death. While the Court has serious reservations as to Plaintiffs' ultimate ability to overcome the pertinent statutory immunities and to demonstrate proximate causation on these facts, it appears that these issues may turn on the existence of extrinsic evidence, which is improper on demurrer. Therefore, the demurrer to Plaintiffs' Second and Third Causes of Action is OVERRULED. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24: ***There are no tentative rulings in Department 24*** The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

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With regard to the Second and Third Causes of Action for Vicarious Liability (Gov. Code § 815.2)-Wrongful Death and Negligent Hiring, Retention and Supervision-Wrongful Death), the Court finds, preliminarily, that these claims fall within the scope of the Court's previous order granting leave, as they respond to the defects identified in the previous version of Plaintiffs' Complaint. Further, the Court finds that Plaintiffs' Government Claim substantially complied with the statutory requirements for asserting these theories of liability, as the claim identified the relevant statutory bases in conjunction with the basic facts at issue herein.

The Court further finds that the allegations are sufficient at the pleading stage to state the subject claims, specifically to the extent that the alleged failures on the part of County personnel breached an obligation to Deputy Hutsell to address alleged signs of psychological deterioration, which purportedly led to his death. While the Court has serious reservations as to Plaintiffs' ultimate ability to overcome the pertinent statutory immunities and to demonstrate proximate causation on these facts, it appears that these issues may turn on the existence of extrinsic evidence, which is improper on demurrer.

Therefore, the demurrer to Plaintiffs' Second and Third Causes of Action is OVERRULED.

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